

CHAPTER 1
MANDATORY LABEL INFORMATION
27 CFR 4.32 and Part 16

1. BRAND NAME (27 CFR 4.33)

- GENERAL FEATURES

- Usually the most prominent piece of information on the label.
- Name under which a wine or line of wines is marketed.

NOTE: If the wine is not sold under a brand name, the name of the bottler, packer or importer (if shown on the brand label) becomes the brand name.

- MISLEADING BRAND NAME

- No label may contain a misleading brand name. A brand name is misleading if, whether standing alone or in combination with other printed or graphic material, it creates any impression or inference as to the age, origin, identity or other characteristics of the wine, UNLESS the appropriate TTB officer finds that the brand name:
 - ☐ Conveys no erroneous or misleading impressions about the wine.

OR

- ☐ When qualified with the word “BRAND” conveys no erroneous impression as to the age, origin, identity, or other characteristics of the product. TTB will make these determinations on a case-by-case basis.

NOTE: Qualification with the word “BRAND” is NOT an option in the case of a brand name of viticultural significance (See Chapter 4, Geographic Brand Names).

- Exceptions relating to age in 27 CFR 4.39(b). No statement of age or representation relating to age may appear on the label (including the brand name) EXCEPT:
 - For vintage wine in accordance with the provisions in 27 CFR 4.27;
 - References relating to methods of wine production involving storage or aging may be made in accordance with 27 CFR 4.38(f);

Example: “AGED (or MATURED) 6 MONTHS IN OAK CASKS”;

OR

- Use of the word “old” as part of a brand name.
- BRAND NAME INCLUDING A VINEYARD, ORCHARD, FARM, OR RANCH NAME (27 CFR 4.39(m))
 - When used in a brand name, a vineyard, orchard, farm, or ranch name having geographical or viticultural significance is subject to the requirements of 27 CFR 4.33(b) and 4.39(i).

NOTE: SEE ALSO, CHAPTER 4, GEOGRAPHIC BRAND NAMES.

- In general, a brand name that includes a vineyard, orchard, farm, or ranch name is acceptable:
 - If not less than 95 percent of the wine was produced from primary winemaking material grown on the named vineyard, orchard, farm, or ranch;

OR

- If the company name or trade name shown in the mandatory name and address statement on the label is identical to the brand name that includes a vineyard, orchard, farm, or ranch name.
- TYPE SIZE (27 CFR 4.38(b))
 - Minimum 2 millimeters (mm) for containers larger than 187 milliliters (ml),

OR

- Minimum 1 mm for containers of 187 ml or less.

NOTE: The brand name is not required to be in all capital letters; however, the minimum type size applies to each letter in the brand name, including both upper-case and lower-case letters.

- LEGIBILITY (27 CFR 4.38(a))
 - Must be readily legible under ordinary conditions;
 - Must appear on a contrasting background; and
 - Must appear separate and apart from, or be substantially more conspicuous than, descriptive or explanatory information (27 CFR 4.38(b)).
- PLACEMENT

- Must appear on the BRAND label of the container.

2. CLASS AND TYPE DESIGNATION (27 CFR 4.34)

Subpart C of Part 4 sets forth various standards of identity for different classes and types of wine. If the class of the wine is not defined in subpart C, a truthful and adequate statement of composition must appear on the brand label in lieu of a class designation.

NOTE: SEE ALSO, CHAPTER 5, CLASS AND TYPE DESIGNATION.

- TYPE SIZE (27 CFR 4.38(b))
 - Minimum 2 mm for containers larger than 187 ml,

OR

- Minimum 1 mm for containers of 187 ml or less.

NOTE: The class/type designation is not required to be in all capital letters; however, the minimum type size applies to each letter in the designation, including both upper-case and lower-case letters.

- LEGIBILITY (27 CFR 4.38(a))
 - Must be readily legible under ordinary conditions;
 - Must appear on a contrasting background; and
 - Must appear separate and apart from, or be substantially more conspicuous than, descriptive or explanatory information (27 CFR 4.38(b)).
- PLACEMENT
 - Must appear on the BRAND label of the container.

3. ALCOHOL CONTENT (27 CFR 4.36)

The regulations (27 CFR 4.36) require numerical alcohol content statements to appear on wine labels, EXCEPT:

In the case of wine containing 14 percent or less* alcohol by volume, the alcohol content may, but need not, be stated if the type designation “table wine” or “light wine” appears on the brand label as the mandatory class/type designation.

NOTE: If table wine or light wine is made from any commodity other than grapes, “TABLE WINE” or “LIGHT WINE” must be qualified with the specific or general class of the commodity from which the wine was made. (See CLASSES AND TYPES chart in CHAPTER 5, CLASS AND TYPE DESIGNATION.)

Example: “CHERRY TABLE WINE” or “LIGHT RICE WINE”

- Form of Numerical Alcohol Content Statement

- Alcohol content may be stated as a specific percentage with a tolerance of:

- ☐ Plus or minus 1 percentage point for wines containing over 14 percent alcohol by volume;

Example: A wine is labeled with the alcohol content statement “18% ALC. BY VOL.” Provided the actual alcohol content does not exceed 19 percent or fall below 17 percent, the label alcohol content statement “18% ALC. BY VOL.” is permissible.

- ☐ Plus or minus 1.5 percentage points for wines containing no more than 14 percent alcohol by volume;

Example: A wine is labeled with the alcohol content statement “12% ALC. BY VOL.” Provided the actual alcohol content does not exceed 13.5 percent or fall below 10.5 percent, the label alcohol content statement “12% ALC. BY VOL.” is permissible.

OR

- Alcohol content may be stated as a range. The range may not exceed:

- ☐ 2 percentage points for wines containing over 14 percent alcohol by volume;

Example: “17%-19% ALC. BY VOL.”

- ☐ 3 percentage points for wines containing no more than 14 percent alcohol by volume;

Example: “9%-12% ALC. BY VOL.”

***Wine containing less than 7 percent alcohol by volume is not subject to the labeling regulations of the FAA Act.**

NOTE: Regardless of the prescribed tolerances and the allowed ranges, an alcohol content statement, whether required or optional, must definitely and correctly indicate the class, type, and taxable grade of the wine so labeled. The regulations do not authorize the appearance of a range of alcohol content on a label if the range overlaps a prescribed limitation on the alcohol content of any class, type, or taxable grade of wine. See the current version of 27 CFR part 4 for class and type designations. See the current version of 26 U.S.C. 5041 for wine tax classifications.

Example: A still grape table wine is labeled with the designation “table wine” and the alcohol content statement “13.5% ALC. BY VOL.” Provided the actual alcohol content does not exceed 14 percent or fall below 12 percent, the labeled alcohol content statement “13.5% ALC. BY VOL.” is permissible. It would not be permissible if the actual alcohol content of the wine were 14.5 percent alcohol by volume, because this alcohol content would put the wine into a different type designation (i.e., dessert wine rather than table wine).

- **FORMAT**

The alcohol content statement may include the abbreviations “alc.” or “alc” for alcohol, and “vol.” or “vol” for “volume. The words may appear in capital letters or lower case letters.

- For statements of the specific percentage of alcohol:

- “ALCOHOL (ALC.) ____ % BY VOLUME (VOL.)”

OR

- “____ % ALCOHOL (ALC) BY VOLUME (VOL)”

- For alcohol content statements shown in a range:

- “____% TO ____% ALCOHOL (ALC.) BY VOLUME (VOL.)”

OR

- “ALCOHOL (ALC.) ____% TO ____ % BY VOLUME (VOL.)”

- **TYPE SIZE (27 CFR 4.38(b)(3))**

- For containers of 5 liters or less:

- Minimum 1 mm;

- Maximum 3 mm.

NOTE: The alcohol content statement is not required to be in all capital letters; however, the minimum and maximum type size applies to each numeral, symbol or letter in the statement, including both upper-case and lower-case letters.

- LEGIBILITY (27 CFR 4.38(a))
 - Must be readily legible under ordinary conditions;
 - Must appear on a contrasting background.
- PLACEMENT
 - May appear on any label of the container.

4. PERCENTAGE OF FOREIGN WINE (27 CFR 4.32(a)(4))

A statement of the percentage and origin of foreign wine (e.g., “30% GRAPE WINE FROM ITALY”) is required on blends of American and foreign wines if any reference to the presence of foreign wine is made on the label.

- TYPE SIZE (27 CFR 4.38(b))
 - Minimum 2 mm for containers larger than 187 ml,

OR

- Minimum 1 mm for containers of 187 ml or less.

NOTE: The percentage of foreign wine is not required to be in all capital letters; however, the minimum type size applies to each numeral, symbol or letter in the statement, including both upper-case and lower-case letters.

- LEGIBILITY (27 CFR 4.38(a))
 - Must be readily legible under ordinary conditions;
 - Must appear on a contrasting background; and
 - Must appear separate and apart from or be substantially more conspicuous than descriptive or explanatory information (27 CFR 4.38(b)).
- PLACEMENT
 - Must appear on the brand label of the container.

5. NAME AND ADDRESS (27 CFR 4.35)

- **REQUIRED**

- **For American wine:**

- ☐ The name and address of the bottler or packer must appear on the label, preceded by the phrase “bottled by” or “packed by.”

- **For imported wine:**

- ☐ The name and address of the importer, agent, sole distributor, or other person responsible for the importation must appear on the label, preceded by the phrase “imported by” or a similar appropriate phrase (such as “Sole U.S. Agent”);

AND

- ☐ If the wine is bottled or packed in the United States after importation:
 - The name and address of the bottler or packer must also appear on the label;

OR

- If the wine was bottled or packed for the person responsible for the importation, the words “imported by and bottled (packed) in the United States for” (or a similar phrase), followed by the name and address of the principal place of business of the person responsible for the importation;

OR

- If the wine was bottled or packed by the person responsible for the importation, the words “imported and bottled (packed) by”, followed by the name and address of the principal place of business in the United States of the person responsible for the importation.

OR

- ☐ If the wine is blended, bottled, or packed in a foreign country other than the country of origin and the label identifies the country of origin, the label shall also state “blended by,” “bottled by,” or “packed by,” or some other appropriate statement, followed by the name of the blender, bottler, or packer and the place where the wine was blended, bottled, or packed.

NOTE: SEE ALSO, CHAPTER 6, NAME AND ADDRESS (OPTIONAL STATEMENTS AND PRECEDING EXPLANATORY PHRASES).

- NAME AND ADDRESS

- Name

- ☐ The trade or operating name of any person appearing on any label must be identical to a name appearing on the basic permit or other qualifying document.

- Address

- ☐ The “place” shown on the label is the post office address shown on the basic permit or other qualifying document of the premises at which the operations took place. The street address and zip code may be omitted. The city and State are required.
 - ☐ The label must show the address of each operation that is designated on the label.

Example: “Produced at Gilroy, California, and bottled at San Mateo, California, by XYZ Winery.”

- ☐ No additional places or addresses shall be stated for the same person unless:
 - Such person is actively engaged in the conduct of an additional bona fide and actual alcohol beverage business at such additional place or address;

AND

- The label also contains in direct conjunction therewith appropriate descriptive material indicating the function occurring at such additional place or address in connection with the particular product.
 - ☐ In the case of an importer, the address shown on the label is the city and State of the importer’s principal place of business in the United States, as shown on the basic permit.

- “Bottled By (or For)”

- ☐ This phrase refers to wine placed in containers of 4 liters or less.

- “Packed By (or For)”

- This phrase refers to wine placed in containers of more than 4 liters.

NOTE: SEE ALSO, CHAPTER 6, NAME AND ADDRESS (OPTIONAL STATEMENTS AND PRECEDING EXPLANATORY PHRASES)

- TYPE SIZE (27 CFR 4.38(b))
 - Minimum 2 mm for containers larger than 187 ml,

OR

- Minimum 1 mm for containers of 187 ml or less.

NOTE: The name and address statement is not required to be in all capital letters; however, the minimum type size applies to each numeral or letter in the statement, including both upper-case and lower-case letters.

- LEGIBILITY (27 CFR 4.38(a))
 - Must be readily legible under ordinary conditions;
 - Must appear on a contrasting background; and
 - Must appear separate and apart from, or be substantially more conspicuous than, descriptive or explanatory information (27 CFR 4.38(b)).
- PLACEMENT
 - May appear on any label on the container.

6. NET CONTENTS (27 CFR 4.37)

- REQUIRED
 - The net contents of wine for which a standard of fill is prescribed in 27 CFR 4.72 must be stated in the same manner and form as set forth in the standard of fill.
 - The net contents of wine for which no standard of fill is prescribed in 27 CFR 4.72 must be stated in the metric system of measure.

NOTE: SEE ALSO, CHAPTER 7, STANDARDS OF FILL.

- TYPE SIZE (27 CFR 4.38(b))
 - Minimum 2 mm for containers larger than 187 ml,

OR

- Minimum 1 mm for containers of 187 ml or less.

NOTE: The net contents statement is not required to be in all capital letters; however, the minimum type size applies to each numeral or letter in the statement, including both upper-case and lower-case letters.

- **LEGIBILITY (27 CFR 4.38(a))**
 - Must be readily legible under ordinary conditions;
 - Must appear on a contrasting background; and
 - Must appear separate and apart from, or be substantially more conspicuous than, descriptive or explanatory information (27 CFR 4.38(b)).
- **PLACEMENT**
 - Net contents may be blown or branded into the bottle in lieu of or in addition to stating net contents on the label (27 CFR 4.37(c)).
 - May appear on the FRONT, BACK, or SIDE of the container (27 CFR 4.32).
- **TOLERANCE (27 CFR 4.37)**
 - Statements of net contents must indicate exactly the volume of wine within the container, with limited tolerances provided in 27 CFR 4.37(d).
 - Unreasonable shortages in some containers in a shipment may not be compensated by overages in other containers in the same shipment.”
 - For tolerance requirements for products removed from wine premises, please see 27 CFR 24.255.

7. FD&C YELLOW NO. (or #) 5 DISCLOSURE (27 CFR 4.32(c))

- **REQUIRED**

“CONTAINS FD&C YELLOW NO. 5” or “CONTAINS FD&C YELLOW #5” must appear on the label where that coloring material is used in a product bottled on or after October 6, 1984.

- **TYPE SIZE (27 CFR 4.38(b))**

- Minimum 2 mm for containers larger than 187 ml.

OR

- Minimum 1 mm for containers of 187 ml or less.
- LEGIBILITY (27 CFR 4.38(a))
 - Must be readily legible under ordinary conditions;
 - Must appear on a contrasting background; and
 - Must appear separate and apart from, or be substantially more conspicuous than, descriptive or explanatory information (27 CFR 4.38(b)).

NOTE: The statement is not required to be in all capital letters; however, the minimum type size applies to each numeral, symbol or letter in the statement, including both upper-case and lower-case letters.

- PLACEMENT (27 CFR 4.32)
 - May appear on the brand or back label of the container.
 - A wine containing FD&C Yellow No. 5 is required to bear a statement of composition on the brand label. The statement of composition may use the phrase “certified color” rather than specifically identifying FD&C Yellow No. 5, but FD&C Yellow No. 5 must specifically be declared elsewhere on the product’s label (27 CFR 4.34(a)).

8. DECLARATION OF COCHINEAL EXTRACT OR CARMINE (27 CFR 4.32(d))

There must be stated on a front label, back label, strip label, or neck label a statement that the product contains the color additive cochineal extract or the color additive carmine, prominently and conspicuously, using the respective common or usual name (“cochineal extract” or “carmine”), where either of the coloring materials is used in a product that is removed on or after April 16, 2013.

Examples: “CONTAINS COCHINEAL EXTRACT”;
“CONTAINS CARMINE”;

OR

“CONTAINS COCHINEAL EXTRACT AND CARMINE” (if applicable).

- TYPE SIZE (27 CFR 4.38(b))
 - Minimum 2 mm for containers larger than 187 ml.

OR

- Minimum 1 mm for containers of 187 ml or less.

NOTE: The statement is not required to be in all capital letters; however, the minimum type size applies to each letter in the statement, including both upper-case and lower-case letters.

- LEGIBILITY (27 CFR 4.38(a))
 - Must be readily legible under ordinary conditions;
 - Must appear on a contrasting background; and
 - Must appear separate and apart from, or be substantially more conspicuous than, descriptive or explanatory information (27 CFR 4.38(b)).
- PLACEMENT (27 CFR 4.32)
 - May appear on the brand or back label of the container.
 - A wine containing either cochineal extract or carmine, or both, is required to bear a statement of composition on the brand label. The statement of composition may use the phrase “artificial color” rather than specifically identifying cochineal extract or carmine, but cochineal extract or carmine must specifically be declared elsewhere on the product’s label (27 CFR 4.34(d)).

9. SULFITE DECLARATION (27 CFR 4.32(e))

- REQUIRED
 - For any wine containing 10 or more parts per million (ppm) of sulfur dioxide, the statement “CONTAINS SULFITES” or “CONTAINS (A) SULFITING AGENT(S)” or identification of the specific sulfiting agent(s) is required.
 - The following statements may be used in lieu of the above statements for products that contain 10 ppm or more sulfur dioxide if no sulfites were added in the production process:
 - “CONTAINS NATURALLY OCCURRING SULFITES”;

OR

- “NO SULFITES ADDED, CONTAINS ONLY NATURALLY OCCURRING SULFITES”

TTB will not approve an application for label approval for a wine (other than an agricultural wine) that does not include a sulfite statement, unless the applicant presents a sulfite analysis conducted by the TTB Laboratory, establishing that the wine contains less than 10 ppm sulfur dioxide. Producers of domestic wines should contact the TTB Compliance Laboratory and importers should contact the TTB Beverage Alcohol Laboratory to request a sulfite waiver analysis for submission with their COLA applications.

NOTE: While laboratory analyses are not required to be submitted with an application for label approval for an agricultural wine where the label bears no sulfite statement, it is nonetheless the responsibility of the label applicant to ensure that the agricultural wine is properly labeled with a sulfite statement if the wine contains 10 or more ppm of sulfur dioxide.

- **OPTIONAL STATEMENTS:**

- If the label applicant submits a TTB Laboratory analysis establishing that the wine contains less than 10 ppm sulfur dioxide, the label is not required to include any sulfite statement. However, such a wine may be labeled with an optional statement such as:
 - Where the TTB Laboratory analysis shows less than 10 ppm sulfites: “Contains Less than 10 ppm Sulfites”, or “Contains Less than 10 ppm sulfur dioxide.”
 - Where the TTB Laboratory analysis detects no sulfites: “No Sulfites [Sulfur Dioxide] Detected” or “No Detectable Sulfites [Sulfur Dioxide].”

- **TYPE SIZE (27 CFR 4.38(b))**

- Minimum 2 mm for containers larger than 187 ml.

OR

- Minimum 1 mm for containers of 187 ml or less.

NOTE: The statement is not required to be in all capital letters; however, the minimum type size applies to each letter in the statement, including both upper-case and lower-case letters.

- **LEGIBILITY (27 CFR 4.38(a))**

- Must be readily legible under ordinary conditions;

- Must appear on a contrasting background; and
- Must appear separate and apart from, or be substantially more conspicuous than, descriptive or explanatory information (27 CFR 4.38(b)).
- PLACEMENT (27 CFR 4.32(e))
 - May appear on the FRONT, BACK, STRIP, or NECK label of the container.

10. HEALTH WARNING STATEMENT (27 CFR part 16)

- REQUIRED

The health warning statement below must appear on all alcohol beverages for sale or distribution in the U.S. containing not less than 0.5 percent alcohol by volume, intended for human consumption, and bottled on or after November 18, 1989:

GOVERNMENT WARNING: (1) According to the Surgeon General, women should not drink alcoholic beverages during pregnancy because of the risk of birth defects. (2) Consumption of alcoholic beverages impairs your ability to drive a car or operate machinery, and may cause health problems.

- FORMAT
 - The words “**GOVERNMENT WARNING**” must appear in capital letters and in bold type;
 - The remainder of the statement may not appear in bold type;
 - The statement must appear as a continuous paragraph.
- TYPE SIZE
 - Minimum 3 mm for containers larger than 3 liters (101 fl. oz.)

OR

 - Minimum 2 mm for containers larger than 237 ml (8 fl. oz.) to 3 liters (101 fl. oz.)

OR

 - Minimum 1 mm for containers of 237 ml (8 fl. oz.) or less
- LEGIBILITY

- Must be readily legible under ordinary conditions and appear on a contrasting background;
- Must appear separate and apart from all other label information;
- May not exceed maximum number of characters per inch:

<u>Minimum Type Size Requirement</u>	<u>Maximum Characters Per Inch</u>
1 mm	40
2 mm	25
3 mm	12

- PLACEMENT

- May appear on the FRONT, BACK, or SIDE of the container.

11. COUNTRY OF ORIGIN (19 CFR 134.11)

- APPLICATION

- Country of Origin statements are required by the U.S. Customs and Border Protection regulations on containers of wines (including bulk wines) imported into the United States. (See 19 CFR 134.11.)

CHAPTER 2

TYPE SIZE AND LEGIBILITY REQUIREMENTS

27 CFR 4.38

1. TYPE SIZE

MANDATORY INFORMATION (EXCEPT ALCOHOL CONTENT STATEMENT) UNDER 27 CFR PART 4.

- Minimum 2 mm for containers larger than 187 ml,
- Minimum 1 mm for containers of 187 ml or less.

- **ALCOHOL CONTENT STATEMENT**

- For containers of 5 liters or less:

- ☐ Minimum 1 mm
- ☐ Maximum 3 mm

NOTE: The minimum/maximum type size applies to each letter in a mandatory information statement, including both upper-case and lower-case letters.

2. LEGIBILITY REQUIREMENTS

MANDATORY INFORMATION (EXCEPT ALCOHOL CONTENT STATEMENT) UNDER 27 CFR PART 4.

- Must be readily legible under ordinary conditions.
 - Must appear on a contrasting background.
 - Must appear separate and apart from, or be of a size substantially more conspicuous than, other descriptive or explanatory information.
- **ALCOHOL CONTENT STATEMENT**
 - Must be readily legible.
 - Must appear on a contrasting background.

NOTE: See CHAPTER 3, for type size and legibility requirements for the Health Warning Statement required under 27 CFR part 16.

CHAPTER 3
FORMAT, TYPE SIZE AND LEGIBILITY REQUIREMENTS FOR
HEALTH WARNING STATEMENT
27 CFR 16.22

1. FORMAT

- The words “**GOVERNMENT WARNING**” must appear in capital letters and in bold type;
- The remainder of the statement may not appear in bold type;
- The statement must appear as a continuous paragraph.

2. TYPE SIZE

<u>Container Size</u>	<u>Minimum Type Size Requirement</u>
Over 3 liters (101 fl. oz.)	3 mm
Over 237 ml (8 fl. oz.) and up to 3 liters (101 fl. oz.)	2 mm
237 ml (8 fl. oz.) or less	1 mm

3. LEGIBILITY REQUIREMENTS

- Must be readily legible under ordinary conditions and appear on a contrasting background;
- Must appear separate and apart from all other label information;
- May not exceed maximum number of characters per inch:

<u>Minimum Type Size Requirement</u>	<u>Maximum Characters Per Inch</u>
3 mm	12
2 mm	25
1 mm	40

CHAPTER 4 GEOGRAPHIC BRAND NAMES

1. GENERAL RULES

- BRAND NAME OF VITICULTURAL SIGNIFICANCE (27 CFR 4.39(i))
 - A brand name of viticultural significance may not be used unless the wine meets the appellation of origin requirements for the geographic area named or unless the brand name is “grandfathered” and meets the requirements described below.
- “GRANDFATHERED” BRAND NAME OF VITICULTURAL SIGNIFICANCE
 - A brand name of viticultural significance is “grandfathered” if it was used on a certificate of label approval (COLA) issued prior to July 7, 1986.
- VITICULTURAL SIGNIFICANCE

A brand name has viticultural significance if the brand name includes the name of:

- A U.S. State or foreign equivalent;
- A U.S. county or foreign equivalent;
- An approved American or foreign viticultural area; or
- A geographic area that is found to have viticultural significance by the appropriate TTB Officer, including terms of viticultural significance as set forth in 27 CFR part 9.

2. REQUIREMENTS FOR USE OF A BRAND NAME OF VITICULTURAL SIGNIFICANCE THAT IS NOT “GRANDFATHERED”

- A brand name of viticultural significance that is not subject to the grandfather clause may be used ONLY if the wine meets the appellation of origin requirements for the geographic area named in the brand name. See 27 CFR 4.25 for appellation of origin requirements. See 27 CFR part 9 for American Viticultural Areas.

- **EXAMPLES OF BRAND NAMES THAT ARE NOT “GRANDFATHERED” CHART**

- The chart below provides examples of brand names of viticultural significance that are not “grandfathered,” and the requirements for their use.

BRAND NAME & CLASS AND TYPE DESIGNATION	BRAND NAME ACCEPTABLE IF
Washington Cellars Apple Wine	1) Not less than 75 percent of the volume of the wine is derived from apples grown in Washington State AND 2) The wine was fully finished (except for cellar treatment under 27 CFR 4.22(c) and blending that does not result in an alteration of class and type) in Washington State or an adjacent State AND 3) The wine conforms to the laws and regulations of Washington State governing the composition, method of manufacture, and designation of wines made in that State.
Quebec Grande Sparkling Wine	1) Not less than 75 percent of the volume of the wine is derived from grapes grown in the province of Quebec AND 2) The wine conforms to the laws and regulations of Canada governing the composition, method of production, and designation of wines available for consumption within Canada.
Sonoma Coast Royale Table Wine	1) Not less than 85 percent of the volume of the wine is derived from grapes grown in the Sonoma Coast viticultural area AND 2) The wine was fully finished (except for cellar treatment under 27 CFR 4.22(c) and blending that does not result in an alteration of class and type) in California.
Muchacha de Rioja Red Wine	1) Not less than 85 percent of the volume of the wine is derived from grapes grown in the Rioja viticultural area AND 2) The wine conforms to the laws and regulations of Spain governing the composition, method of production, and designation of wines available for consumption within Spain.

3. REQUIREMENTS FOR USE OF A “GRANDFATHERED” BRAND NAME OF VITICULTURAL SIGNIFICANCE

- A “Grandfathered” brand name of viticultural significance may be used PROVIDED:

- The wine meets the appellation of origin requirements for the geographic area named in the brand name;

OR

- The wine is LABELED WITH an appellation of origin, in direct conjunction with the class and type designation, as outlined in the APPELLATIONS FOR “GRANDFATHERED” GEOGRAPHIC BRAND NAMES chart below;

OR

- The wine is labeled with a statement found by the appropriate TTB officer to be sufficient to dispel the impression that the geographic area suggested by the brand name is indicative of the origin of the wine.

- APPELLATIONS FOR “GRANDFATHERED” GEOGRAPHIC BRAND NAMES CHART

- The chart below identifies the specific type of appellation of origin required for a “grandfathered” geographic brand name based on the type of appellation of origin included in the brand name.

APPELLATIONS FOR “GRANDFATHERED” GEOGRAPHIC BRAND NAMES

IF THE BRAND NAME INCLUDES THE NAME OF...	THE WINE MUST BE LABELED WITH AN APPELLATION OF ORIGIN OF...
A U.S. State or a foreign equivalent of a U.S. State	A U.S. State or foreign equivalent of a U.S. State; OR A U.S. county or foreign equivalent of a U.S. county; OR An approved American or foreign viticultural area.
A U.S. county or a foreign equivalent of a U.S. county	A U.S. county or foreign equivalent of a U.S. county; OR An approved American or foreign viticultural area.
An approved American or foreign viticultural area	A U.S. county or foreign equivalent of a U.S. county; OR An approved American or foreign viticultural area.
A geographic area found by the appropriate TTB officer to have viticultural significance	A U.S. county or foreign equivalent of a U.S. county; OR An approved American or foreign viticultural area.

CHAPTER 5
CLASS AND TYPE DESIGNATION
27 CFR 4.21 and 4.34 (unless otherwise noted)

1. GENERAL FEATURES

27 CFR 4.32(a)(2) requires the brand label to include a class, type or other designation in accordance with 27 CFR 4.34. (See Chapter 1 - Mandatory Label Information.)

The class or type designation is based on the defined classes and types in the standards of identity, with some additional designations allowed for eligible wines under 27 CFR 4.23, 4.24, 4.28, and 4.34.

2. DEFINITIONS

- CLASS
 - The broad category “wine” is divided, under the standards of identity, into a number of general but defined classes; e.g., “Grape Wine” and “Aperitif Wine.”
- TYPE
 - Under most of the general classes are specific, defined types of wine. For example, “Muscadine” is a specific type of “Grape Wine” and “Vermouth” is a specific type of “Aperitif Wine.”

3. CLASS AND TYPE DESIGNATION

Most TYPE names are sufficient as class and type designations.

Some CLASS names are sufficient as class and type designations.

Additional designations are allowed for certain wines.

NOTE: The following chart categorizes and very broadly defines all classes and most types of wine. Those classes and types that are sufficient as class and type designations are noted as such. *Please note further that the chart is merely a summary – the regulations should be consulted for all of the requirements applicable to the use of each class or type designation.*

CLASSES AND TYPES OF WINE UNDER 27 CFR PART 4*

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
Various classes – 27 CFR 4.21(a)(2) (Grape wine) 27 CFR 4.21(d)(2) (Citrus wine) 27 CFR 4.21(e)(3) (Fruit wine) 27 CFR 4.21(f)(2) (Agricultural wine)		TABLE WINE OR LIGHT WINE ¹	Wine containing at least 7 but not more than 14% alcohol by volume. “Table Wine” or “Light Wine” is grape wine containing at least 7% but not more than 14% alcohol by volume. Citrus, fruit, and agricultural table or light wines must be further identified, e.g., “Blueberry Table Wine” or “Light Rice Wine.”
Various classes – 27 CFR 4.21(a)(3) (Grape wine) 27 CFR 4.21(d)(3) (Citrus wine) 27 CFR 4.21(e)(4) (Fruit wine) 27 CFR 4.21(f)(3) (Agricultural wine)		DESSERT WINE ²	Wine containing over 14% but not more than 24% alcohol by volume. “Dessert Wine” is grape wine containing over 14% but not more than 24% alcohol by volume. Citrus, fruit, and agricultural dessert wines must be further identified, e.g., “Pineapple Dessert Wine.”
Grape Wine ² – 27 CFR 4.21(a)(1)	Wine produced by the normal alcoholic fermentation of the juice of sound, ripe grapes (including restored or unrestored pure condensed grape must), with or without the addition, after fermentation, of pure condensed grape must, and with or without added grape brandy or alcohol, but without other addition or abstraction except as may occur in cellar treatment.** The regulations at 27 CFR 4.21(a)(1) also set forth the methods by which grape wine may be ameliorated before, during, or after fermentation.	RED WINE ²	Grape wine identified by color.
		ROSE WINE ²	Grape wine identified by color.
		PINK WINE ²	Grape wine identified by color.
		WHITE WINE ²	Grape wine identified by color.
		AMBER WINE ²	Grape wine identified by color.
	27 CFR 4.24(b)(1) and 26 USC 5388 –	BURGUNDY ³	Grape wine produced in France unless grandfathered.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
	Semi-generic Grape Wines for which no specific alcohol content or method of production is provided for in TTB regulations. See “ Grape Dessert Wines that are Semi-Generic ” and “ Sparkling Wines ” for additional semi-generic grape wines.	CHABLIS ³	Grape wine produced in France unless grandfathered.
		CHIANTI ³	Grape wine produced in Italy unless grandfathered.
		CLARET ³	Grape wine produced in France unless grandfathered.
		MALAGA ³	Grape wine produced in Spain unless grandfathered.
		MARSALA ³	Grape wine produced in Italy unless grandfathered.
		MOSELLE ³	Grape wine produced in Germany unless grandfathered.
		RHINE WINE OR HOCK ³	Grape wine produced in Germany unless grandfathered.
		SAUTERNE ³	Grape wine produced in France unless grandfathered.
		HAUT SAUTERNE ³	Grape wine produced in France unless grandfathered.
		TOKAY ³	Grape wine produced in Hungary unless grandfathered.
	27 CFR 4.24(c) and Part 12, Subpart D - Foreign nongeneric names that are also distinctive designations of specific grape wines.	BERNKASTELER DOCTOR (DOKTOR) ⁴	Grape wine designation of the Federal Republic of Germany.
		DEIDESHEIMER ⁴	Grape wine designation of the Federal Republic of Germany.
		DEXHEIMER DOKTOR ⁴	Grape wine designation of the Federal Republic of Germany.
		ERBACHER MARCOBRUNN ⁴	Grape wine designation of the Federal Republic of Germany.
		FORSTER ⁴	Grape wine designation of the Federal Republic of Germany.
		FORSTER JESUITENGARTEN ⁴	Grape wine designation of the Federal Republic of Germany.
		GRAACHER HIMMELREICH ⁴	Grape wine designation of the Federal Republic of Germany.
		LIEBFRAUMILCH ⁴	Grape wine designation of the Federal Republic of Germany.
		LIEBFRAUENMILCH ⁴	Grape wine designation of the Federal Republic of Germany.
		MOSEL ⁴	Grape wine designation of the Federal Republic of Germany.
		MOSEL-SAAR-RUWER ⁴	Grape wine designation of the Federal Republic of Germany.
		OCKFENER BOCKSTEIN ⁴	Grape wine designation of the Federal Republic of Germany.
		PIESPORTER GOLDTROPFCHEN ⁴	Grape wine designation of the Federal Republic of Germany.
		PIESPORTER MICHELSBERG ⁴	Grape wine designation of the Federal Republic of Germany.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
		PIESPORTER TREPPCHEN ⁴	Grape wine designation of the Federal Republic of Germany.
		RUDESHEIMER ⁴	Grape wine designation of the Federal Republic of Germany.
		SCHARZHOFBERGER ⁴	Grape wine designation of the Federal Republic of Germany.
		SCHLOSS JOHANNISBERGER ⁴	Grape wine designation of the Federal Republic of Germany.
		SCHLOSS VOLLRADS ⁴	Grape wine designation of the Federal Republic of Germany.
		WEHLENER SONNENUHR ⁴	Grape wine designation of the Federal Republic of Germany.
		ZELLER SCHWARZE KATZ ⁴	Grape wine designation of the Federal Republic of Germany.
		ALOXE-CORTON ⁴	Grape wine designation of France.
		ALSACE OR VIN D'ALSACE ⁴	Grape wine designation of France.
		ANJOU ⁴	Grape wine designation of France
		BARSAC ⁴	Grape wine designation of France.
		BATARD- MONTRACHET ⁴	Grape wine designation of France.
		BEAUJOLAIS ⁴	Grape wine designation of France
		BEAUJOLAIS VILLAGES ⁴	Grape wine designation of France.
		BEAUNE ⁴	Grape wine designation of France.
		BONNES MARES ⁴	Grape wine designation of France.
		BORDEAUX ⁴	Grape wine designation of France.
		BORDEAUX BLANC ⁴	Grape wine designation of France.
		BORDEAUX ROUGE ⁴	Grape wine designation of France.
		BOURGOGNE ⁴	Grape wine designation of France.
		BROUILLY ⁴	Grape wine designation of France.
		CHAMBERTIN ⁴	Grape wine designation of France.
		CHAMBOLLE- MUSIGNY ⁴	Grape wine designation of France.
		CHARMES- CHAMBERTIN ⁴	Grape wine designation of France.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
		CHASSAGNE-MONTRACHET ⁴	Grape wine designation France.
		CHATEAU LAFITE ⁴	Grape wine designation of France.
		CHATEAU MARGAUX ⁴	Grape wine designation of France.
		CHATEAU YQUEM ⁴	Grape wine designation of France.
		CHATEAUNEUF-DU-PAPE ⁴	Grape wine designation of France.
		CHENAS ⁴	Grape wine designation of France.
		CHEVALIER-MONTRACHET ⁴	Grape wine designation of France.
		CHIROUBLES ⁴	Grape wine designation of France.
		CLOS DE LA ROCHE ⁴	Grape wine designation of France.
		CLOS DE VOUGEOT ⁴	Grape wine designation of France.
		CORTON ⁴	Grape wine designation of France.
		CORTON-CHARLEMAGNE ⁴	Grape wine designation of France.
		COTE DE BEAUNE ⁴	Grape wine designation of France.
		COTE DE BEAUNE-VILLAGES ⁴	Grape wine designation of France.
		COTE DE BROUILLY ⁴	Grape wine designation of France.
		COTE DE NUITS ⁴	Grape wine designation of France.
		COTE DE NUITS-VILLAGES ⁴	Grape wine designation of France.
		COTE ROTIE ⁴	Grape wine designation of France.
		COTEAUX DU LAYON ⁴	Grape wine designation of France.
		COTES DU RHONE ⁴	Grape wine designation of France.
		ECHEZEAUX ⁴	Grape wine designation of France.
		ENTRE-DEUX-MERS ⁴	Grape wine designation of France.
		FLEURIE ⁴	Grape wine designation of France.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
		GEVREY-CHAMBERTIN ⁴	Grape wine designation of France.
		GRANDS ECHEZEUX ⁴	Grape wine designation of France.
		GRAVES ⁴	Grape wine designation of France.
		HAUT MEDOC ⁴	Grape wine designation of France.
		HERMITAGE ⁴	Grape wine designation of France.
		LA TACHE ⁴	Grape wine designation of France.
		LOIRE ⁴	Grape wine designation of France.
		MACON ⁴	Grape wine designation of France.
		MARGAUX ⁴	Grape wine designation of France.
		MEDOC ⁴	Grape wine designation of France.
		MERCUREY ⁴	Grape wine designation of France.
		MEURSAULT ⁴	Grape wine designation of France.
		MONTRACHET ⁴	Grape wine designation of France.
		MORGON ⁴	Grape wine designation of France.
		MOULIN-A-VENT ⁴	Grape wine designation of France.
		MUSCADET ⁴	Grape wine designation of France.
		MUSIGNY ⁴	Grape wine designation of France.
		NUITS OR NUITS-SAINT-GEORGES ⁴	Grape wine designation of France.
		PAUILLAC ⁴	Grape wine designation of France.
		POMEROL ⁴	Grape wine designation of France.
		POMMARD ⁴	Grape wine designation of France.
		POUILLY-FUISSE ⁴	Grape wine designation of France
		POUILLY FUME ⁴	Grape wine designation of France.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
		PULIGNY-MONTRACHET ⁴	Grape wine designation of France.
		RHONE ⁴	Grape wine designation of France.
		RICHEBOURG ⁴	Grape wine designation of France.
		ROMANEE-CONTI ⁴	Grape wine designation of France.
		ROMANEE SAINT-VIVANT ⁴	Grape wine designation of France.
		ROSE D'ANJOU ⁴	Grape wine designation of France.
		SAINT-AMOUR ⁴	Grape wine designation of France.
		SAINT-EMILION ⁴	Grape wine designation of France.
		SAINT-ESTEPHE ⁴	Grape wine designation of France.
		SAINT-JULIEN ⁴	Grape wine designation of France.
		SANCERRE ⁴	Grape wine designation of France.
		SANTENAY ⁴	Grape wine designation of France.
		SAUMUR ⁴	Grape wine designation of France.
		SAVIGNY OR SAVIGNY-LES-BEAUNES ⁴	Grape wine designation of France.
		TAVEL ⁴	Grape wine designation of France.
		TOURAIN ⁴	Grape wine designation of France.
		VOLNAY ⁴	Grape wine designation of France.
		VOSNE-ROMANEE ⁴	Grape wine designation of France.
		VOUVRAY ⁴	Grape wine designation of France.
		ASTI SPUMANTE ⁴	Grape wine designation of Italy.
		BARBARESCO ⁴	Grape wine designation of Italy.
		BARBERA D' ALBA ⁴	Grape wine designation of Italy.
		BARBERA D'ASTI ⁴	Grape wine designation of Italy.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
		BARDOLINO ⁴	Grape wine designation of Italy.
		BAROLO ⁴	Grape wine designation of Italy.
		BRUNELLO DI MONTALCINO ⁴	Grape wine designation of Italy.
		DOLCETTO D'ALBA ⁴	Grape wine designation of Italy.
		FRASCATI ⁴	Grape wine designation of Italy.
		GATTINARA ⁴	Grape wine designation of Italy.
		LACRYMA CHRISTI ⁴	Grape wine designation of Italy.
		NEBBIOLO D'ALBA ⁴	Grape wine designation of Italy.
		ORVIETO ⁴	Grape wine designation of Italy.
		SOAVE ⁴	Grape wine designation of Italy.
		VALPOLICELLA ⁴	Grape wine designation of Italy.
		VINO NOBILE DE MONTEPULCIANO ⁴	Grape wine designation of Italy.
		DAO ⁴	Grape wine designation of Portugal.
		OPORTO ⁴	Grape wine designation of Portugal.
		PORTO OR VINHO DO PORTO ⁴	Grape wine designation of Portugal.
		LAGRIMA ⁴	Grape wine designation of Spain.
		RIOJA ⁴	Grape wine designation of Spain.
	27 CFR 4.21(a)(3), 4.24(b)(2) and 26 U.S.C. 5388 Grape dessert wines that are semi-generic.	SHERRY ³	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Sherry and an alcohol content, derived in part from added grape brandy or alcohol, of 17 – 24 percent alcohol by volume. Produced in Spain unless grandfathered.
		LIGHT SHERRY ³	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Sherry and an alcohol content, derived in part from added grape brandy or alcohol, of more than 14 percent and less than 17 percent alcohol by volume. Produced in Spain unless grandfathered.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
		ANGELICA ²	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Angelica and an alcohol content, derived in part from added grape brandy or alcohol, of 18 – 24 percent alcohol by volume. Produced in the United States unless designated with a different appellation of origin.
		LIGHT ANGELICA ²	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Angelica and an alcohol content, derived in part from added grape brandy or alcohol, of more than 14 percent and less than 18 percent alcohol by volume. Produced in the United States unless designated with a different appellation of origin.
		MADEIRA ³	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Madeira and an alcohol content, derived in part from added grape brandy or alcohol, of 18 – 24 percent alcohol by volume. Produced in Portugal unless grandfathered.
		LIGHT MADEIRA ³	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Madeira and an alcohol content, derived in part from added grape brandy or alcohol, of more than 14 percent and less than 18 percent alcohol by volume. Produced in Portugal unless grandfathered.
		PORT ³	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Port and an alcohol content, derived in part from added grape brandy or alcohol, of 18 – 24 percent alcohol by volume. Produced in Portugal unless grandfathered.
		LIGHT PORT ³	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Port and an alcohol content, derived in part from added grape brandy or alcohol, of more than 14 percent and less than 18 percent alcohol by volume. Produced in Portugal unless grandfathered.
	27 CFR 4.21(a)(3) and 4.28(b) Grape dessert wine – type designation of varietal significance.	MUSCATEL ⁵	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Muscatel and an alcohol content, derived in part from added grape brandy or alcohol, of 18 - 24% alcohol by volume.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
			In addition to the above, Muscatel produced in the U.S. must derive its predominant taste, aroma, characteristics, and at least 75% of its volume from any Muscat grape source.
		LIGHT MUSCATEL ⁵	Type of grape DESSERT WINE having the taste, aroma and characteristics generally attributed to Muscatel and an alcohol content, derived in part from added grape brandy or alcohol, of over 14% but less than 18% alcohol by volume. In addition to the above, light muscatel produced in the U.S. must derive its predominant taste, aroma, characteristics, and at least 75% of its volume from any Muscat grape source.
	27 CFR 4.28(a) – Grape wine – Type designation of varietal significance.	MUSCADINE ⁵	An American grape wine that derives at least 75% of its volume from Muscadinia rotundifolia grapes.
	27 CFR 4.28(c) – Grape wine - Type designation of varietal significance.	MUSCAT/MOSCATO ⁵	For an American wine, a grape wine that derives at least 75% of its volume from any Muscat grape source. For imported wine, see 27 CFR 4.23.
	27 CFR 4.28(d) – Grape wine - Type designation of varietal significance.	SCUPPERNONG ⁵	An American grape wine that derives at least 75% of its volume from bronze Muscadinia rotundifolia grapes.
	27 CFR 4.28(e) – Grape wine - Type designation of varietal significance.	GAMAY BEAUJOLAIS ⁵ NOTE: This designation may not be used on any American wine bottled on or after April 9, 2007.	An American grape wine that derives at least 75% of its volume from Pinot Noir grapes, Valdiguié grapes, or a combination of both. See 27 CFR 4.28 for more requirements.
	27 CFR 4.23(b) – Grape wine – Varietal (grape type) labeling	SINGLE GRAPE VARIETY NAME ⁶	A grape wine may be labeled with a type designation consisting of the name of a single grape variety if not less than 75% of the wine is derived from grapes of that variety, the entire 75 percent of which was grown in the labeled appellation of origin. See 27 CFR 4.23 for more requirements.
	27 CFR 4.23(d) – Grape wine - Varietal (grape type) labeling	TWO OR MORE GRAPE VARIETY NAMES ⁶	A grape wine may be labeled with a type designation consisting of two or more grape varieties if all of the grapes used to make the wine are of the labeled varieties, and the percentage of the wine derived from each variety is shown on the label. See 27 CFR 4.23 for more requirements
Sparkling Wine 27 CFR 4.21(b) (Grape wine)	Wine containing more than 0.392 grams per 100 ml carbon dioxide*** resulting	CHAMPAGNE ³	Sparkling light grape wine that derives its effervescence solely from secondary fermentation within glass containers of not greater than one

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
27 CFR 4.21(d)(4) (Citrus wine)	solely from fermentation of the wine within a closed container, tank, or bottle.	(Semi-generic designation for a sparkling grape wine)	gallon capacity. Champagne must be produced in France unless grandfathered.
27 CFR 4.21(e)(5) (Fruit wine)	"Sparkling Wine" is grape wine made effervescent with carbon dioxide*** resulting solely from the fermentation of the wine within a closed container, tank, or bottle. Sparkling citrus, fruit, and agricultural wines must be further identified, e.g., "Sparkling Peach Wine"	27 CFR 4.21(b), 4.24 and 26 U.S.C. 5388	"Champagne" that derives its effervescence from secondary fermentation in containers greater than 1 gallon capacity must be designated as "Sparkling wine" and may be designated as "champagne – bulk process." See 27 CFR 4.21(b) for other labeling terms.
27 CFR 4.21(f)(6) (Agricultural wine)		CRACKLING WINE ² 27 CFR 4.21(b)(4)	Sparkling light grape wine normally less effervescent than champagne or other similar sparkling wine.
		PETILLANT WINE ² 27 CFR 4.21(b)(4)	Sparkling light grape wine normally less effervescent than champagne or other similar sparkling wine.
		FRIZZANTE WINE ² 27 CFR 4.21(b)(4)	Sparkling light grape wine normally less effervescent than champagne or other similar sparkling wine.
		CREMANT WINE ² 27 CFR 4.21(b)(4)	Sparkling light grape wine normally less effervescent than champagne or other similar sparkling wine.
		PERLANT WINE ² 27 CFR 4.21(b)(4)	Sparkling light grape wine normally less effervescent than champagne or other similar sparkling wine.
		RECIOTTO WINE ² 27 CFR 4.21(b)(4)	Sparkling light grape wine normally less effervescent than champagne or other similar sparkling wine.
		BULK PROCESS CRACKLING WINE ² 27 CFR 4.21(b)(4)	Crackling wine that derives its effervescence from secondary fermentation in containers greater than 1 gallon capacity must be designated as "crackling wine – bulk process."
CARBONATED WINE ² 27 CFR 4.21(c) (Carbonated grape wine) 27 CFR 4.21(d)(4) (Carbonated citrus wine) 27 CFR 4.21(e)(5) (Carbonated fruit wine) 27 CFR 4.21(f)(6) (Carbonated agricultural wine)	Wine containing more than 0.392 grams per 100 ml carbon dioxide*** which is made effervescent with carbon dioxide other than that resulting solely from the secondary fermentation of the wine within a closed container, tank or bottle.		"Carbonated Wine" is carbonated grape wine. Carbonated citrus, fruit, and agricultural wines must be further identified, e.g., "Carbonated Honey Wine."

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
CITRUS WINE – 27 CFR 4.21(d)	Wine produced by the normal alcoholic fermentation of the juice of sound, ripe citrus fruit (including restored or unrestored pure condensed citrus must), with or without the addition, after fermentation, of pure condensed citrus must, and with or without added citrus brandy or alcohol, but without other addition or abstraction except as may occur in cellar treatment.** The regulations at 27 CFR 4.21(d)(1) also set forth the methods by which citrus wine may be ameliorated before, during, or after fermentation.	SPECIFIC CITRUS FRUIT(S) FROM WHICH MADE, E.G., “ORANGE WINE” OR “ORANGE-LEMON WINE” ²	Wine made by fermenting the juice of one or more citrus fruits.
FRUIT WINE (INCLUDES BERRY WINE) – 27 CFR 4.21(e)	Wine (other than grape wine or citrus wine) produced by the normal alcoholic fermentation of the juice of sound, ripe fruit (including restored or unrestored pure condensed fruit must), with or without the addition, after fermentation, of pure condensed fruit must, and with or without added fruit brandy or alcohol, but without other addition or abstraction except as may occur in cellar treatment.** The regulations at 27 CFR 4.21(e)(1) also set forth the methods by which fruit wine may be ameliorated before, during, or after fermentation.	CIDER OR APPLE WINE ²	Wine made wholly from apples. See 27 CFR 24.257, 24.331, and 24.332, for regulations under the Internal Revenue Code of 1986 on the labeling of “hard cider” and eligibility for the hard cider tax rate.
		PERRY OR PEAR WINE ²	Wine made wholly from pears. See 27 CFR 24.257, 24.331, and 24.332, for regulations under the Internal Revenue Code of 1986 on the labeling of “hard cider” and eligibility for the hard cider tax rate.
		SPECIFIC FRUIT(S) FROM WHICH MADE, E.G., “STRAWBERRY WINE” OR “STRAWBERRY-APPLE WINE” ²	Wine made wholly from one or more specific fruits. See 27 CFR 24.257, 24.331, and 24.332, for regulations under the Internal Revenue Code of 1986 on the labeling of “hard cider” and eligibility for the hard cider tax rate.
WINE FROM OTHER AGRICULTURAL PRODUCTS - 27 CFR 4.21(f)	Wine (other than grape wine, citrus wine, or fruit wine) made by the normal alcoholic fermentation of sound fermentable agricultural products, either fresh or dried, or of the restored	MEAD OR HONEY WINE ²	Wine made wholly from honey. ^{***}
		SAKÉ OR RICE WINE ²	Wine made wholly from rice, in accordance with the commonly accepted method of manufacture of such products.

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
	or unrestored pure condensed must thereof, consistent with the standards set forth in 27 CFR 4.21(f).	RAISIN WINE ²	Wine made wholly from dried grapes.
		SPECIFIC AGRICULTURAL PRODUCT(S) FROM WHICH MADE, E.G., "DRIED APRICOT WINE" or "HONEY-RAISIN WINE" ²	Wine made wholly from one or more agricultural commodities.
APERITIF WINE ² - 27 CFR 4.21(g)	<i>Aperitif wine</i> is wine having an alcoholic content of not less than 15 percent by volume, compounded from grape wine containing added brandy or alcohol, flavored with herbs and other natural aromatic flavoring materials, with or without the addition of caramel for coloring purposes, and possessing the taste, aroma, and characteristics generally attributed to aperitif wine	VERMOUTH ²	See CLASS DESCRIPTION
RETSINA WINE ³ - 27 CFR 4.21(i) and 26 U.S.C. 5388	Grape table wine flavored or fermented with resin. Produced in Greece unless grandfathered.	NO TYPE UNDER THIS CLASS	See CLASS DESCRIPTION
SUBSTANDARD WINE OR OTHER THAN STANDARD WINE – 27 CFR 4.21(h)	Wine having a volatile acidity in excess of prescribed limits; or Wine, for which no maximum level of volatile acidity is prescribed, having a volatile acidity in excess of 0.14 gram per 100 ml; or Wine that through disease, decomposition, or otherwise does not possess the characteristics associated with what would otherwise constitute a particular class or type of wine. Grape, citrus, fruit, or agricultural wine produced with sugar and/or water in excess of prescribed limitations.	SPECIFIC CLASS OR TYPE TO WHICH WINE WOULD OTHERWISE BELONG, E.G., "SUBSTANDARD TOMATO WINE" or "OTHER THAN STANDARD ORANGE WINE" ²	See CLASS DESCRIPTION

CLASS	CLASS DESCRIPTION	TYPE	TYPE DESCRIPTION
IMITATION WINE – 27 CFR 4.21(h)	Wine containing synthetic materials; or Wine made from water and residue of wine making material; or Wine treated to acquire taste, aroma, color, or other characteristics that are normally acquired without such treatment. Wine made from must concentrated to more than 80 degrees brix.	SPECIFIC CLASS OR TYPE TO WHICH WINE WOULD OTHERWISE BELONG, E.G., “IMITATION GRAPE WINE” ²	See CLASS DESCRIPTION
WINE SPECIALTY 27 CFR 4.34(a)	Wine not defined under any other class. Generally, wine that contains or is treated with flavoring and/or coloring materials and/or treating materials or processes that the TTB regulations do not authorize for standard wines.	NO DEFINED TYPE(S) UNDER THIS CLASS - PRODUCT DESIGNATION IS UNIQUE TO THE COMPOSITION AND PRODUCTION OF THE WINE. ⁷	See CLASS DESCRIPTION

* Unless otherwise specified, TTB regulations in 27 CFR part 4 address wine containing at least 7 percent and no more than 24 percent alcohol by volume.

** See CHAPTER 8, CELLAR TREATMENT

*** See 26 U.S.C. 5041(h) for temporary provisions of the Internal Revenue Code relating to carbon dioxide limits for “mead” and “low alcohol by volume wine,” as those terms are defined in that subsection. These provisions shall not apply to wine removed after December 31, 2019.

¹ Sufficient as class and type designation. Also sufficient as statement of alcohol content.

² Sufficient as class and type designation.

³ Sufficient as class and type designation. These names are subject to the requirements of 26 U.S.C. 5388(c), which govern the use of certain semi-generic designations and Retsina. These designations may be used to designate wines of an origin other than that indicated by the designation only if certain conditions are met. Among other things, such wines must be labeled with an appellation of origin and must comply with the “grandfather” provisions regarding certificates of label approval or certificates of exemption dated prior to March 10, 2006. See 26 U.S.C. 5388(c) for more detailed information. Pursuant to TTB Ruling 2008-1, a European Union (EU) wine product that bears one of the 17 designations listed in 26 U.S.C. 5388(c)(3)(C)(i) and that conforms to the EU standard for such wine also complies with the United States standard of identity or trade understanding for such wine.

⁴ Sufficient as class and type designation. Also, classified as a foreign nongeneric name of

geographic significance, which has been recognized by the Administrator as a distinctive designation of a specific grape wine. For more information on nongeneric names, See 27 CFR 4.24 and 27 CFR Part 12.

⁵Sufficient as class and type designation assuming that the designation and labeling comply with the requirements of 27 CFR 4.28. See 27 CFR 4.28 for more information, including appellation of origin requirements. See 27 CFR 4.25 for rules regarding appellations of origin.

⁶Sufficient as class and type designation, assuming that the designation and labeling comply with the requirements of 27 CFR 4.23. See 27 CFR 4.23 for more information, including special requirements for wine made from any *Vitis labrusca* variety. See 27 CFR 4.25 for rules regarding appellations of origin. See 27 CFR 4.91 for grape variety names approved as type designations for American wines. For foreign wines, TTB accepts the grape variety names approved for use in the country of origin.

⁷A statement of composition (e.g., “Grape Wine with Natural Spice Flavor”), adequately reflecting the composition and character of the product, is sufficient as the class and type designation; See 27 CFR 4.34.

CHAPTER 6
NAME AND ADDRESS
(OPTIONAL STATEMENTS AND PRECEDING
EXPLANATORY PHRASES)
27 CFR 4.35

NOTE: FOR THE MANDATORY NAME AND ADDRESS STATEMENT, SEE CHAPTER 1

1. OPTIONAL NAME AND ADDRESS STATEMENTS

Optional name and address statements may appear in addition to (but not in lieu of) the required name and address statement. These optional name and address statements include:

- The name and address of the wine premises proprietor that produced, made, blended, cellared, vinted, or prepared the wine.
- The name or name and address of the person for whom the wine was produced, made, blended, etc., and/or bottled (or packed).
- The name or name and address of the foreign wine maker.
- The name or name and address of the person for whom the wine was imported or imported and bottled (or packed).

All name and address statements, whether REQUIRED or OPTIONAL, must be preceded by appropriate explanatory phrases.

2. PRECEDING EXPLANATORY PHRASES – AMERICAN WINE

- The REQUIRED name and address of the bottler (or packer) must be preceded by “BOTTLED (or PACKED) BY.”
- The OPTIONAL name or name and address of the proprietor that performed one of the wine making operations defined in the chart that follows must be preceded by an explanatory phrase that identifies the wine making operation.

EXPLANATORY PHRASES (27 CFR 4.35)

USE THE EXPLANATORY PHRASE	IF (AT THE STATED ADDRESS) THE NAMED PROPRIETOR...
Blended by	Mixed the wine with other wines of the same class and type.
Cellared by	Subjected the wine to cellar treatment in accordance with 27 CFR 4.22(c).*
Made by	Fermented not less than 75 percent of the wine, OR Changed the class and type of the base wine by the addition of alcohol, brandy, flavors, colors, or artificial carbonation, OR Produced sparkling wine by secondary fermentation.
Prepared by	Subjected the wine to cellar treatment in accordance with 27 CFR 4.22(c).*
Produced by	Fermented not less than 75 percent of the wine, OR Changed the class and type of the base wine by the addition of alcohol, brandy, flavors, colors, or artificial carbonation, OR Produced sparkling wine by secondary fermentation.
Vinted by	Subjected the wine to cellar treatment in accordance with 27 CFR 4.22(c).*

*See CHAPTER 8, CELLAR TREATMENT

- If the named proprietor bottled or packed AND at the same address produced, made, blended, cellared, vinted, or prepared the wine, the REQUIRED name and address of the bottler (or packer).
 - Must be preceded by “BOTTLED (or PACKED) BY”

AND

- May also be preceded by an explanatory phrase that references the specific wine making operation [in addition to “BOTTLED (or PACKED) BY”

Example: “PRODUCED AND BOTTLED BY” or “MADE AND PACKED BY”

- More than one name is necessary if the defined operation was performed by a person other than the bottler or packer, and more than one address is necessary if the defined operation was performed at a different address.
 - The OPTIONAL name or name and address of the person for whom the wine was produced, made, blended, etc., and/or bottled (or packed) must be preceded by an appropriate explanatory phrase.

Example: “VINTED AND BOTTLED FOR” or “PACKED FOR”

3. PRECEDING EXPLANATORY PHRASES – IMPORTED WINE

- For wine imported in the bottle, the REQUIRED name and address of the importer or other person responsible for the importation must be preceded by “IMPORTED BY” or other similar appropriate phrase such as “SOLE U.S. AGENT.”
- For wine bottled (or packed) after importation BY the importer, the REQUIRED name and address of the importer must be preceded by “IMPORTED AND BOTTLED (or PACKED) BY.”
- For wine bottled (or packed) after importation FOR the importer:
 - If only the importer is named on the label, the REQUIRED name and address of the importer must be preceded by “IMPORTED BY AND BOTTLED (or PACKED) FOR”
 - If both the importer and the bottler (or packer) are named on the label:
 - The REQUIRED name and address of the importer or other person responsible for the importation must be preceded by “IMPORTED BY” or other similar appropriate phrase such as “SOLE U.S. AGENT”

AND

- The REQUIRED name and address of the bottler (or packer) must be preceded by “BOTTLED (or PACKED) BY”
- For wine blended, bottled or packed in a foreign country outside the country of origin and labeled with a reference to the country of origin, the REQUIRED name and address (city and country) of the blender, bottler, or packer must be preceded by “BLENDED BY,” “BOTTLED BY,” “PACKED BY,” or some other appropriate statement.
- If an OPTIONAL name and address of the principal place of business of the foreign producer appears on the label, it may be preceded by an appropriate explanatory phrase identifying the specific wine making operation. The specific term or phrase used (e.g., “PRODUCED BY”) must be used in accordance with the requirements of the country of origin for wine sold within the country of origin.
- If an OPTIONAL name or name and address of the person for whom the wine was imported or imported and bottled (or packed) appears on the label, it must be preceded by an appropriate explanatory phrase.

Example: “IMPORTED FOR” or “IMPORTED AND BOTTLED (or PACKED) FOR”

CHAPTER 7
STANDARDS OF FILL AND NET CONTENTS
27 CFR 4.32, 4.37 and 4.70 – 4.72

1. STANDARD WINE CONTAINER (27 CFR 4.71)

A standard wine container must be made, formed and filled to meet the following requirements:

- **Design.** It must be made and formed in a manner that will not mislead the purchaser. Wine containers will be considered misleading (even if the correct net contents appear on the label) if the actual capacity is substantially less than the apparent capacity upon visual examination under ordinary conditions of purchase or use.
- **Fill.** It must contain the quantity of wine specified in one of the standards of fill;

AND

- **Headspace.** It must be made and filled so that it has a headspace not in excess of 6 percent of its total capacity after closure if the net content of the container is 187 mL or more, and a headspace not in excess of 10 percent of its total capacity in the case of all other containers.

2. METRIC STANDARDS OF FILL

- **STANDARDS (27 CFR 4.72)**

Except as outlined below, wine bottled on or after January 1, 1979, must be bottled in one of the following sizes:

3 Liters	375 mL
1.5 Liters	187 mL
1 Liter	100 mL
750 mL	50 mL
500 mL	

- **WINE BOTTLED OR PACKED IN CONTAINERS OF 4 - 17 LITERS (27 CFR 4.72)**

For wine bottled or packed in containers of 4 - 17 liters, the net contents must be expressed in even liters (e.g., 4 liters, 5 liters, 6 liters, etc.).

- **TOLERANCE.** See 27 CFR 4.37(d) for the tolerances allowed for labeling statements of net contents. See 27 CFR 24.255 for tolerances under the Internal Revenue Code.

3. APPLICATION OF METRIC STANDARDS OF FILL (27 CFR 4.70)

- The METRIC STANDARDS OF FILL do not apply to:
 - Wine bottled or packed prior to January 1, 1979 (subject to the conditions set out in 27 CFR 4.70);
 - Saké;

OR

- Wine packed in containers of 18 liters or more.

4. WINE BOTTLED OR PACKED BEFORE JANUARY 1, 1979

- NET CONTENTS
 - For wine bottled or packed before January 1, 1979 in a nonstandard size (not one of the METRIC STANDARDS OF FILL), the net contents must be expressed:
 - In liters and decimal portions of a liter accurate to the nearest one-hundredth of a liter for containers of more than one liter.
 - In milliliters for containers of less than one liter.
- DOCUMENTATION
 - Documentation of bottling or packing prior to January 1, 1979, must accompany the application for a certificate of label approval (COLA):
 - For American wine, documentation is a bottling record.
 - For imported wine, documentation is a statement signed by an official duly authorized by the appropriate foreign government. See 27 CFR 4.70(b)(4).

5. SAKÉ (27 CFR 4.37(a))

For Saké not bottled in one of the METRIC STANDARDS OF FILL, the net contents must be expressed:

- In liters and decimal portions of a liter accurate to the nearest one-hundredth of a liter for containers of more than one liter.
- In milliliters for containers of less than one liter.

6. WINE PACKED IN CONTAINERS OF 18 LITERS OR MORE

For wine packed in containers of 18 liters or more, the net contents must be expressed in liters and decimal portions of a liter accurate to the nearest one-hundredth of a liter.

7. U.S. EQUIVALENTS (27 CFR 4.37)

The U.S. equivalent stated in fluid ounces for the metric size may also be shown on the label.

- The established U.S. equivalents for the METRIC STANDARDS OF FILL:

3 Liters (101 fl. oz.)	375 mL (12.7 fl. oz.)
1.5 Liters (50.7 fl. oz.)	187 mL (6.3 fl. oz.)
1 Liter (33.8 fl. oz.)	100 mL (3.4 fl. oz.)
750 mL (25.4 fl. oz.)	50 mL (1.7 fl. oz.)
500 mL (16.9 fl. oz.)	

- Equivalents for non-standard metric sizes must be:
 - Accurate to the nearest one-tenth of a fluid ounce for equivalents of less than 100 fluid ounces.
 - Accurate to the nearest whole fluid ounce for equivalents of 100 fluid ounces or more.

CHAPTER 8
CELLAR TREATMENT FOR NATURAL WINE
27 CFR 4.22, 24.246, 24.248, and 24.250

1. GENERAL

Cellar treatment involves the use of various methods or materials to correct or stabilize wine or juice.

The regulations in 27 CFR 4.22 provide for the use of certain cellar treatments that do not alter the class of the wine.

2. AUTHORIZED CELLAR TREATMENT (27 CFR 4.22(b) and (c))

The regulations in 27 CFR 4.22, which apply to both imported and American wines, provide that the following types of cellar treatment, within the limits set out in the regulations, do not alter the class or type of the product.

AUTHORIZED CELLAR TREATMENTS

AUTHORIZED CELLAR TREATMENT	RESTRICTIONS ON USE
Treatment with filtering equipment	Good commercial practice.*
Treatment with fining agents	Good commercial practice.*
Treatment with sterilizing agents	Good commercial practice.*
Treatment with sulfur dioxide	May not exceed 350 parts per million (ppm) in the finished wine.
Treatment with pasteurization	1) May not change the basic composition of the wine; and 2) May not eliminate any of the wine's characteristic elements.
Treatment with refrigeration	1) May not change the basic composition of the wine; and 2) May not eliminate any of the wine's characteristic elements.
Treatment with methods and materials to correct cloudiness, precipitation, or abnormal color, odor, or flavor developing in wine	May be treated only to the minimum extent necessary to achieve correction.
Treatment with the use of constituents naturally present in the	May be treated only to the extent that these constituents would be present in normal

AUTHORIZED CELLAR TREATMENT	RESTRICTIONS ON USE
kind of fruit or other agricultural product from which the wine is produced to correct deficiencies of these constituents	wines of the same class or type not so treated.
Treatment involving volatile fruit-flavor concentrates as prescribed in 26 USC 5382.	Volatile fruit-flavor concentrates: 1) May be added only to wine of a winemaker's own production; and 2) Must be produced from the same kind of fruit (if made from a fruit other than grapes or berries) or the same variety of berry or grape from which the wine was made, and 3) Proportion of volatile fruit-flavor concentrate added to the wine may not exceed the proportion of volatile fruit-flavor concentrate in the original juice or must from which the wine was produced, and 4) Must be produced at a volatile fruit-flavor concentrate plant.
Use of carbon dioxide to maintain counterpressure during the transfer of finished sparkling wines from bulk processing tanks to bottles, or bottle to bottle	Carbon dioxide may not be increased by more than 0.009 grams per 100 ml during the transfer operation.

* Good commercial practice: In general, good commercial practices include those practices that address the reasonable technological or practical need to enhance the keeping, stability, or other qualities of the wine and that achieve the winemaker's desired effect, without creating an erroneous impression about the wine's character and composition.

3. AUTHORIZED WINE AND JUICE TREATING MATERIALS (27 CFR 24.246)

See 27 CFR 24.246 for a chart that lists the materials that may be used on bonded wine premises in the production, cellar treatment, or finishing of wine, and where applicable in the treatment of juice, within the general limitations provided in that section. Certain exceptions to those authorizations are provided in the regulation, including the following:

- When the specified use or limitation of any material on this list is determined to be unacceptable by the U.S. Food and Drug Administration (FDA), the appropriate TTB officer may cancel or amend the approval for use of the material in the production, cellar treatment, or finishing of wine;

AND

- Where water is added to facilitate the solution or dispersal of a material, the volume of water added, whether the material is used singly or in combination with other water based treating materials, may not total more than one percent of the volume of the treated wine, juice, or both wine and juice, from which such wine is produced.

Note: In addition to the materials listed in section 24.246, other materials may be used in formula wine if approved for such use.

4. AUTHORIZED PROCESSES (27 CFR 24.248)

Any process that changes the character of the wine to the extent inconsistent with good commercial practice is not permitted on bonded wine premises. The regulations in 27 CFR 24.248 provide a chart that lists the processes approved as being consistent with good commercial practice for use by proprietors in the production, cellar treatment, or finishing of wine, juice, and distilling material, within the general limitations of this section.

When the specified use or limitation of any process on that list is determined to be unacceptable for use in foods and beverages by the FDA, the appropriate TTB officer may cancel or amend the approval for use of the process in the production, cellar treatment, or finishing of wine, juice, and distilling material.

5. APPLICATION FOR USE OF NEW TREATING MATERIALS AND PROCESSES (27 CFR 24.250)

A proprietor of wine premises who wishes to use a material or a process that is not specifically authorized by 27 CFR part 24 must first obtain approval from the appropriate TTB officer. See 27 CFR 24.250 for further information on how to request approval for new materials or processes.

6. IMPORTED WINE

Imported wine may be subjected to authorized treatments or blended with other wine at the wine premises, within the limitations prescribed by part 24. See 27 CFR 4.22(c) for the types of cellar treatment that do not alter the class and type of the wine under TTB regulations.

Proprietors of wine premises should contact TTB if they have questions about other cellar treatments of imported wines. The eligibility of the imported wine for an appellation of origin is based on the factors set forth in 27 CFR 4.25.

See 27 CFR 4.45, 4.53 and 27.140 for certification requirements applicable to certain imported natural wines.

CHAPTER 9
OPTIONAL STATEMENTS
APPELLATION OF ORIGIN AND VINTAGE DATE

1. APPELLATION OF ORIGIN (27 CFR 4.25 AND 4.34)

- **GENERAL FEATURES**

- An appellation of origin is not required on all wine labels. However, the label must include an appellation of origin if the wine is labeled with:
 - A vintage date (27 CFR 4.27);
 - A varietal designation (27 CFR 4.23);
 - A type designation of varietal significance (27 CFR 4.28);
 - A semi-generic designation (27 CFR 4.24);
 - An “estate bottled” claim (27 CFR 4.26); or
 - A product name qualified with the word “brand” under the requirements of 27 CFR 4.39(j).
- In some cases, only a particular type of appellation may be used. See *e.g.*, 27 CFR 4.26 (estate bottled). As explained in Chapter 4, Geographic Brand Names, the use of certain appellations of origin may also satisfy the requirements of 27 CFR 4.39(i) with respect to the use of “grandfathered” brand names of viticultural significance.
- When an appellation of origin is required to appear on the label under 27 CFR 4.34(b), the appellation must appear in direct conjunction with, and in lettering substantially as conspicuous as, the class and type designation on the brand label.

- **TERMS**

- An appellation of origin generally designates the geographic area in which the fruit or agricultural product was grown. The chart below sets forth the minimum percentage requirements for different appellations of origin. Other requirements for use of an appellation of origin are also set forth in the regulations.
- An American viticultural area is a delimited grape-growing region having a name, distinguishing features, and a delineated boundary as established in 27 CFR part 9.
- In the case of viticultural areas for imported wine, the boundaries must be recognized and defined by the country of origin for use on labels of wine available for consumption within the country of origin.

REQUIREMENTS FOR USE – AMERICAN WINE

APPELLATION	REQUIREMENTS FOR USE...	If Grape Wine Labeled with a Vintage Date
The United States or American	1) Not less than 75 percent of the wine must be derived from fruit or agricultural products (as applicable) grown in the United States; AND 2) The wine must be fully finished (except for cellar treatment pursuant to §4.22(c), and blending that does not result in an alteration of class or type under §4.22(b)) within the United States; AND 3) The wine must conform to the laws and regulations of the named appellation area governing the composition, method of manufacture, and designation of wines made in the United States.	At least 85% of the wine was derived from grapes harvested in the stated calendar year.
A State	1) Not less than 75 percent of the wine must be derived from fruit or agricultural products (as applicable) grown in the named State; AND 2) The wine must be fully finished (except for cellar treatment pursuant to §4.22(c), and blending that does not result in an alteration of class or type under §4.22(b)) in the named State or an adjacent State; AND 3) The wine must conform to the laws and regulations of the named appellation area governing the composition, method of manufacture, and designation of wines made in such State.	At least 85% of the wine was derived from grapes harvested in the stated calendar year.
A county The appellation must be identified with the word “county” in the same size of type as, and in letters as conspicuous as, the name of the county.	1) Not less than 75 percent of the wine must be derived from fruit or agricultural products (as applicable) grown in the named county; AND 2) The wine must be fully finished (except for cellar treatment pursuant to §4.22(c), and blending that does not result in an alteration of class or type under §4.22(b)) in the State in which the named county is located; AND 3) The wine must conform to the laws and regulations of the named appellation area (including the law of the State in which the county is located) governing the composition, method of manufacture, and designation of wines made in such county.	At least 85% of the wine was derived from grapes harvested in the stated calendar year

APPELLATION	REQUIREMENTS FOR USE...	If Grape Wine Labeled with a Vintage Date
Multistate appellation - Comprising two or no more than three States which are all contiguous	1) All of the fruit or agricultural products (as applicable) were grown in the States indicated, and the percentage of the wine derived from fruit or other agricultural products grown in each State is shown on the label with a tolerance of plus or minus 2 percent; 2) The wine has been fully finished (except for cellar treatment pursuant to §4.22(c), and blending that does not result in an alteration of class or type under §4.22(b)) in one of the labeled appellation States; AND 3) The wine conforms to the laws and regulations governing the composition, method of manufacture, and designation of wines in all of the States listed in the appellation.	At least 85% of the wine was derived from grapes harvested in the stated calendar year.
Multicounty appellation - Comprising two or no more than three counties in the same State	1) All of the fruit or agricultural products (as applicable) were grown in the counties indicated; AND 2) The percentage of the wine derived from fruit or agricultural products (as applicable) grown in each county is shown on the label with a tolerance of plus or minus two percent.	At least 85% of the wine was derived from grapes harvested in the stated calendar year.
An approved American viticultural area	1) Not less than 85 percent of the wine must be derived from grapes grown in the named viticultural area; AND 2) The wine must be fully finished (except for cellar treatment pursuant to §4.22(c), and blending that does not result in an alteration of class or type under §4.22(b)) in the State (or one of the States) in which the named viticultural area is located.	At least 95% of the wine was derived from grapes harvested in the stated calendar year.

REQUIREMENTS FOR USE – IMPORTED WINE

Appellation	REQUIREMENTS FOR USE...	If Grape Wine Labeled with a Vintage Date
A foreign country	1) Not less than 75 percent of the wine must be derived from fruit or agricultural products (as applicable) grown in the named country AND 2) The wine must conform to the laws and regulations of the named country governing the composition, method of production, and designation of wines available for consumption within that country.	At least 85% of the wine was derived from grapes harvested in the stated calendar year.
A foreign state, province, territory, or similar political subdivision of a country equivalent to a State or county	1) Not less than 75 percent of the wine must be derived from fruit or agricultural products (as applicable) grown in the named foreign equivalent of a State AND 2) The wine must conform to the laws and regulations of the country in which the wine was produced governing the composition, method of production, and designation of wines available for consumption within that country.	At least 85% of the wine was derived from grapes harvested in the stated calendar year.
A foreign equivalent of a multistate appellation - Comprising two or no more than three states, provinces, territories, or similar political subdivisions of a foreign country equivalent to a state which are all contiguous	1) All of the fruit or agricultural products (as applicable) were grown in the states, provinces, territories, or similar political subdivisions of a country equivalent to a state indicated, and the percentage of the wine derived from fruit or other agricultural products grown in each state, province, territory, or political subdivision equivalent to a state is shown on the label with a tolerance of plus or minus 2 percent; AND 2) The wine must conform to the laws and regulations of the country in which the wine was produced governing the composition, method of production, and designation of wines available for consumption within that country.	At least 85% of the wine was derived from grapes harvested in the stated calendar year.

Appellation	REQUIREMENTS FOR USE...	If Grape Wine Labeled with a Vintage Date
An approved foreign viticultural area	1) Not less than 85 percent of the wine must be derived from grapes grown in the named viticultural area AND 2) The wine must conform to the laws and regulations of the country in which the wine was produced governing the composition, method of production, and designation of wines available for consumption within that country.	At least 95% of the wine was derived from grapes harvested in the stated calendar year.

2. VINTAGE DATE (27 CFR 4.27)

- GENERAL FEATURES

- The vintage date is not required to appear on the label. However, the presence of a vintage date requires an appellation of origin.
- May only appear on grape wine.
- Is usually displayed on the brand label along with the class and type designation and brand name.

- DEFINITIONS

Vintage wine is labeled with the year the grapes were harvested. The wine must be made in accordance with Class 1, 2, or 3 of 27 CFR 4.21. See 27 CFR 4.21(a), (b) and (c).

- REQUIREMENTS FOR USE – MINIMUM PERCENTAGES
 - For wine that is labeled with a viticultural area appellation of origin (or foreign equivalent), at least 95 percent of the wine must have been derived from grapes harvested in the labeled calendar year.
 - For wine that is labeled with an appellation of origin other than a viticultural area (or foreign equivalent), at least 85 percent of the wine must have been derived from grapes harvested in the labeled calendar year.

- REQUIREMENTS FOR USE - DOCUMENTATION

- ☐ For American wine, the permittee who bottles, packs, rebottles, or repacks the wine in containers of 5 liters or less must possess appropriate records from the producer substantiating the year of vintage, the appellation of origin, and compliance with the provisions of 27 CFR 4.27.
- ☐ For imported wine, the importer of the wine imported in bottles or the domestic bottler of wine imported in bulk and bottled in the United States must be able to demonstrate, upon request by the appropriate TTB officer or a customs officer, that the wine is entitled to be labeled with the vintage date if it had been sold within the country of origin.
- ☐ For imported wine, the wine must either be bottled in containers of 5 liters or less prior to importation or be bottled in the United States from the original container showing a vintage date.

CHAPTER 10

SAMPLE WINE LABELS

This chapter is designed to provide examples of approvable wine labels using the most common label formats submitted to the Alcohol and Tobacco Tax and Trade Bureau (TTB), along with additional comments to further explain some aspects of the labeling rules. The TTB regulations are quite detailed in regard to the production of a wine and the information appearing on the label, and although we have assembled some samples in this chapter that should prove useful, they are not intended to be all-encompassing.

These labels are all for 750 ml containers, so the type sizes are accurate. The smallest letter in all of the mandatory information statements is at least 2 mm in height, although the alcohol content statement could be as small as 1 mm in height but can be no larger than 3 mm in height. The Government Warning statement has no more than 25 characters per inch.

This information is being issued to help the public understand and comply with the laws and regulations that TTB administers. It is not intended to establish any new, or change any existing, definitions, interpretations, standards, or procedures regarding those laws and regulations.

SAMPLE TABLE WINE BRAND LABEL

RED TABLE WINE
BOTTLED BY XYZ WINERY, CITY, STATE
GOVERNMENT WARNING: (1) ACCORDING TO THE SURGEON GENERAL, WOMEN SHOULD NOT DRINK ALCOHOLIC BEVERAGES DURING PREGNANCY BECAUSE OF THE RISK OF BIRTH DEFECTS. (2) CONSUMPTION OF ALCOHOLIC BEVERAGES IMPAIRS YOUR ABILITY TO DRIVE A CAR OR OPERATE MACHINERY, AND MAY CAUSE HEALTH PROBLEMS.
CONTAINS SULFITES
750 ML

This label contains all of the mandatory information for a typical domestic grape wine that contains at least 7 percent alcohol by volume but no more than 14 percent alcohol by volume.

In this example, since this product is not sold under a brand name, the name of the bottler also serves as the brand name for the label (27 CFR 4.33(a)). “Table Wine” is the class and type designation (27 CFR 4.21(a)(2)).

Also, when the type designation “Table Wine” appears on the brand label of a wine having at least 7 percent but no more than 14 percent alcohol by volume, a numerical alcohol content statement is not required. (27 CFR 4.36(a)).

NOTE: Bottlers of wine often obtain approval of “generic” wine labels in order to comply with the regulatory requirement to obtain a certificate of label approval (COLA) prior to bottling the wine. In some cases, the winery may then obtain a new COLA before removal of the wine, to reflect additional language placed on the label that is ultimately affixed to the bottle. In such cases, both the generic COLA number and the COLA number of the approved label ultimately affixed to the bottle should then be reflected in the bottled or packed wine record required by 27 CFR 24.308.

SAMPLE DESSERT WINE BRAND LABEL

RED WINE
ALC. 14.1% BY VOL.
BOTTLED BY XYZ WINERY, CITY, STATE
GOVERNMENT WARNING: (1) ACCORDING TO THE SURGEON GENERAL, WOMEN SHOULD NOT DRINK ALCOHOLIC BEVERAGES DURING PREGNANCY BECAUSE OF THE RISK OF BIRTH DEFECTS. (2) CONSUMPTION OF ALCOHOLIC BEVERAGES IMPAIRS YOUR ABILITY TO DRIVE A CAR OR OPERATE MACHINERY, AND MAY CAUSE HEALTH PROBLEMS.
CONTAINS SULFITES
750 ML

This label contains all of the mandatory information for a typical domestic grape wine that contains more than 14 percent but not more than 24 percent alcohol by volume. TTB refers to wine of this class as “Dessert Wine” (27 CFR 4.21(a)(3)).

In this example, “Red Wine” is the class and type designation; however, “Dessert Wine” would also be an acceptable class and type designation for grape wine with an alcohol content in excess of 14 percent (27 CFR 4.21(a)(3)). Unlike “Table Wine,” the designation “Dessert Wine” does not suffice as an alcohol content statement. A numerical statement of the percentage of alcohol by volume is required for any wine with an alcohol content of more than 14 percent alcohol by volume (27 CFR 4.36(a)).

In this example, since this product is not sold under a brand name, the name of the bottler also serves as the brand name for the label (27 CFR 4.33(a)).

NOTE: Bottlers of wine often obtain approval of “generic” wine labels in order to comply with the regulatory requirement to obtain a COLA prior to bottling the wine. In some cases, the winery may then obtain a new COLA before removal of the wine, to reflect additional language placed on the label that is ultimately affixed to the bottle. In such cases, both the generic COLA number and the COLA number of the approved label ultimately affixed to the bottle should then be reflected in the bottled or packed wine record required by 27 CFR 24.308.

SAMPLE STANDARD ONE-PIECE WINE BRAND LABEL

ABC WINES
AMERICAN MERLOT
ALC. 15.5% BY VOL.
BOTTLED BY XYZ VINTNERS, CITY, STATE
750 ML
GOVERNMENT WARNING: (1) ACCORDING TO THE SURGEON GENERAL, WOMEN SHOULD NOT DRINK ALCOHOLIC BEVERAGES DURING PREGNANCY BECAUSE OF THE RISK OF BIRTH DEFECTS. (2) CONSUMPTION OF ALCOHOLIC BEVERAGES IMPAIRS YOUR ABILITY TO DRIVE A CAR OR OPERATE MACHINERY, AND MAY CAUSE HEALTH PROBLEMS. CONTAINS SULFITES

This wine is designated as “American Merlot.” “American” represents the appellation of origin (27 CFR 4.25(b)) and “Merlot” represents the varietal designation (27 CFR 4.23(b)). This designation means that at least 75 percent of the wine is derived from Merlot grapes grown in the United States.

Since a varietal designation (Merlot) is used on this label, an appellation of origin (American) is required (27 CFR 4.23(a)). The appellation must appear in direct conjunction with the class/type designation (27 CFR 4.34(b)); this requirement is satisfied because both are on the same label. On this label, the mandatory sulfite statement is in bold print and flush right to comply with the requirement that the health warning statement be separate and apart from all other information (27 CFR 16.21).

In this example “ABC Wines” serves as the brand name for the label (27 CFR 4.33(a)).

SAMPLE STANDARD TWO-PIECE WINE LABEL

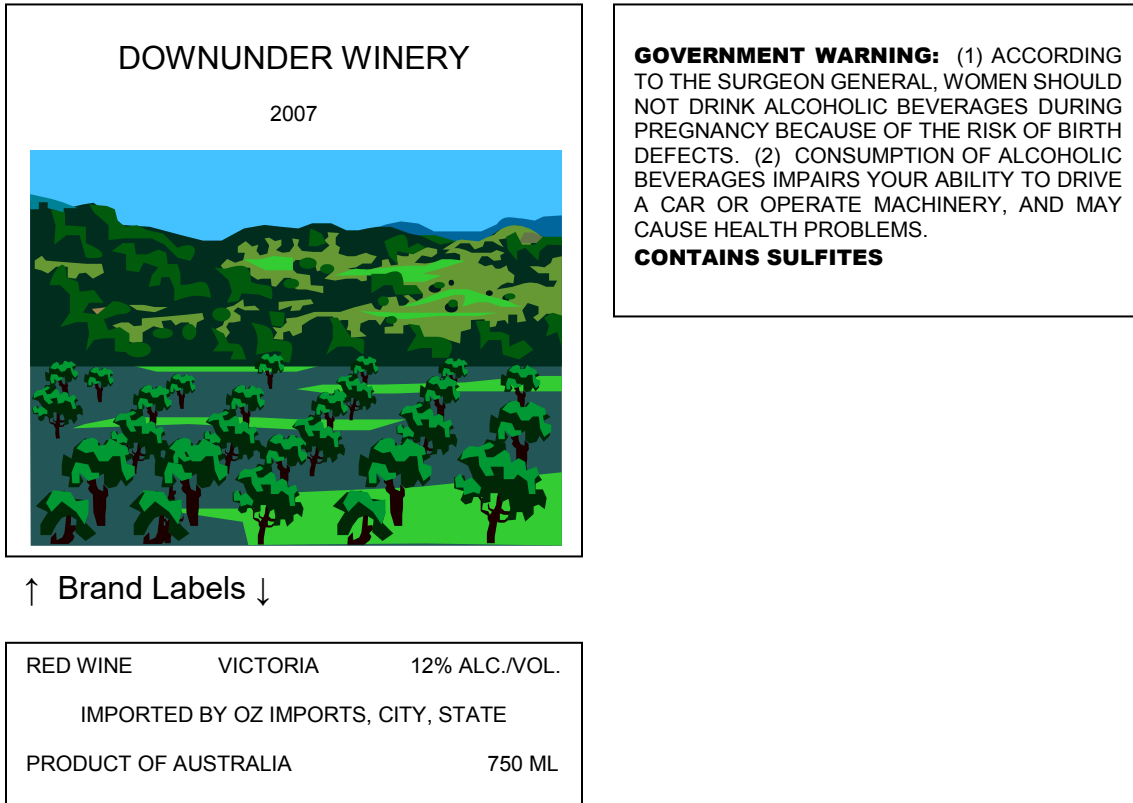
ABC WINERY 2008 <i>Fanciful Name Rose</i> ZZZ COUNTY ROSE WINE ALC. 12.5% BY VOL.	BOTTLED BY ABC WINERY, CITY, STATE CONTAINS SULFITES 750 ML GOVERNMENT WARNING: (1) ACCORDING TO THE SURGEON GENERAL, WOMEN SHOULD NOT DRINK ALCOHOLIC BEVERAGES DURING PREGNANCY BECAUSE OF THE RISK OF BIRTH DEFECTS. (2) CONSUMPTION OF ALCOHOLIC BEVERAGES IMPAIRS YOUR ABILITY TO DRIVE A CAR OR OPERATE MACHINERY, AND MAY CAUSE HEALTH PROBLEMS.
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↑ Brand Label ↑

This example provides an optional fanciful name. Fanciful names do not replace the need for a class and type designation (in this case, "Rose Wine") (27 CFR 4.34(a)). Also keep in mind that "Rose" (like "red," "pink" "amber," or "white") must be followed by "Wine" in order to serve as the class and type designation (27 CFR 4.21(a)(1)(iv)).

In addition, because this wine is vintage dated, an appellation of origin is required (27 CFR 4.27(a)). The appellation must appear in direct conjunction with the class and type designation (27 CFR 4.34(b)); this requirement is satisfied because both are on the same label. In this case, a county serves as the appellation of origin.

SAMPLE IMPORTED WINE LABEL WITH ADDITIONAL STRIP LABEL



The “DOWNUNDER WINERY” label is an example of a label applied by the foreign winery. In order to qualify for TTB approval, the U.S. importer may have the foreign winery affix an additional “strip” label to the bottle in order to bring it into compliance with the requirements of the regulations. The “strip” label must appear on the same face of the container as the label with the brand name if it contains mandatory information (such as the designation “red wine”) that must appear on the brand label. (27 CFR 4.32(a)).

An appellation of origin is required on this label because it is labeled with a vintage date (27 CFR 4.27(a)). Accordingly, it is important to remember that *the appellation of origin* (in this case, “Victoria”) must appear in direct conjunction with *the class and type designation* (in this case, “Red Wine”) (27 CFR 4.34(b)). This requirement is satisfied because they are on the same label.

In this example Downunder Winery is the brand name for the label (27 CFR 4.33(a)). “Product of Australia” serves as the country of origin statement in accordance with U. S. Customs and Border Protection regulations.

SAMPLE DOMESTIC THREE-PIECE WINE LABEL

ABC WINES 2007	BOTTLED BY ABC VINTNERS, CITY, STATE 750 ML GOVERNMENT WARNING: (1) ACCORDING TO THE SURGEON GENERAL, WOMEN SHOULD NOT DRINK ALCOHOLIC BEVERAGES DURING PREGNANCY BECAUSE OF THE RISK OF BIRTH DEFECTS. (2) CONSUMPTION OF ALCOHOLIC BEVERAGES IMPAIRS YOUR ABILITY TO DRIVE A CAR OR OPERATE MACHINERY, AND MAY CAUSE HEALTH PROBLEMS. CONTAINS SULFITES
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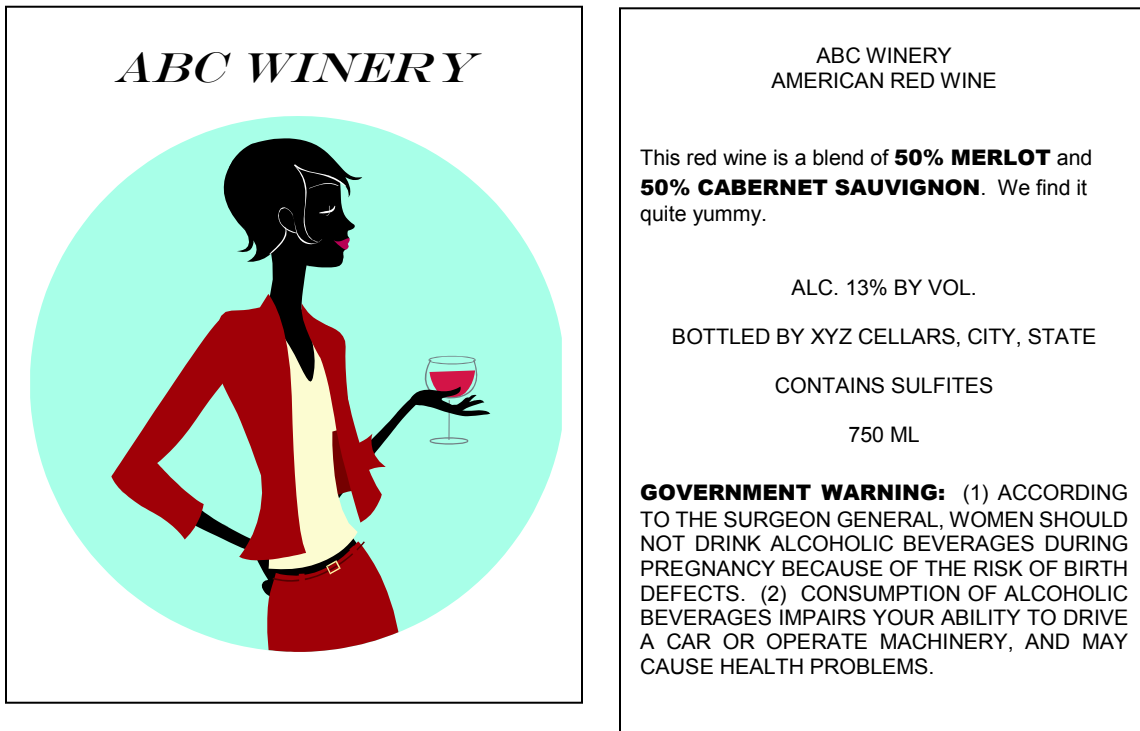
↑ Brand Labels ↓

CALIFORNIA 60% CHARDONNAY 40% SEMILLON ALC. 12.5% BY VOL.
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When designing three-piece brand labels for a wine with a varietal designation or a vintage date, it is important to remember that *the appellation of origin* (in this case, “California”) must appear in direct conjunction with *the class and type designation* (in this case, the grape varieties and their percentages). See 27 CFR 4.34(b). This requirement is satisfied because they both appear on the same label. The brand name is “ABC Wines” (27 CFR 4.33(a)).

NOTE: When the names of two or more grape varieties appear on the brand label, this is treated as the type designation, and the percentages of each grape type must be shown and must total 100 percent (27 CFR 4.23(d)).

SAMPLE BOTTLER/IMPORTER-DESIGNATED-BRAND LABEL



↑ Brand Label ↑

This label is acceptable because it contains the mandatory brand label information and the bottler/importer has designated it as the “brand” label on the COLA submission. However, since this label is to be considered the brand label, it must meet all of the brand-label requirements, and brand-label requirements are more stringent than back-label requirements.

For example, brand-label varietal references are treated as the type designation, even where another designation (such as “red wine”) appears on the brand label. When using a single grape variety or two or more grape varieties as the type designation, the varietals (and their percentages) must be in at least 2 mm print and must appear separate and apart from, or more conspicuous than, surrounding text. If the mandatory information appears surrounded by other text, it must be substantially more conspicuous than the surrounding text. (27 CFR 4.38(b)). This requirement is satisfied if the mandatory information appears in bold print or in a type size that is at least twice the size of the surrounding text.

“NON-STANDARD WINE” LABEL

ABC WINERY <i>(Optional Fanciful Name)</i> RED WINE WITH NATURAL FLAVORS ALC. 12.5% BY VOL.	BOTTLED BY ABC VINTNERS, CITY, STATE CONTAINS SULFITES 750 ML GOVERNMENT WARNING: (1) ACCORDING TO THE SURGEON GENERAL, WOMEN SHOULD NOT DRINK ALCOHOLIC BEVERAGES DURING PREGNANCY BECAUSE OF THE RISK OF BIRTH DEFECTS. (2) CONSUMPTION OF ALCOHOLIC BEVERAGES IMPAIRS YOUR ABILITY TO DRIVE A CAR OR OPERATE MACHINERY, AND MAY CAUSE HEALTH PROBLEMS.
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↑ Brand Label ↑

These labels contain all of the mandatory information for a wine that is not defined in the standards of identity found in the TTB regulations, and thus must be designated with a truthful and adequate statement of composition, which is considered the mandatory class and type designation, and must appear on the brand label. This kind of wine must obtain formula approval prior to the submission of the label. The formula approval will include a suggested statement of composition (e.g. “Grape wine with natural flavors added”); however, industry members may obtain approval for a more specific statement of composition on their application for label approval.

Please note that a fanciful name is optional and may be shown on the label, but it does not replace the need for a statement of composition (27 CFR 4.34(a)).

The statement of composition for such wines may not include references to a varietal designation, a type designation of varietal significance, a semi-generic geographical type designation, or a geographic distinctive designation (27 CFR 4.34(a) and 4.39(n)).